



U.S. Department
of Transportation

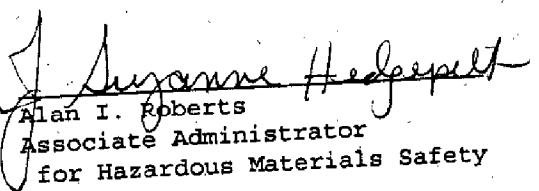
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9886 (EXTENSION)
ORIGINAL May 4, 1988

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9886 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to July 31, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

AUG 29 1994

(DATE)

Dist: FHWA FRA USCG

EXEMPTION HOLDER

APPLICATION DATE

Clayton Mark, Inc.
Rogers, AR

July 15, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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DOT-E 9886

1. Clayton Mark, Inc., Rogers, Arkansas, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to manufacture, mark and sell the packaging described in paragraph 7 below for use in the transportation of nonflammable gases described in paragraph 3 below in commerce subject to the requirements specified herein. This exemption authorizes the use of a non-DOT specification steel water pump system tank with an outside diameter not exceeding 28 inches and a precharge of compressed air or nitrogen not exceeding 42 psig, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Clayton Mark, Inc's application dated November 19, 1987, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Compressed air or nitrogen classed as a nonflammable gas.

4. PROPER SHIPPING NAME. Air, compressed or nitrogen as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.306 and Part 172 subpart D and E.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, cargo vessel.

7. SAFETY CONTROL MEASURES.

a. Packaging prescribed is a water pump system tank conforming with Clayton Mark, Inc. drawing CM-205 issue G dated November 21, 1985, and 49 CFR 173.306(g) except that the maximum design pressure is 42 psig and the maximum outside diameter is 28 inches.

b. Each tank must be pneumatically tested to 100 psig. Test pressure must be permanently marked on the tank.

c. The stress at the prescribed pressure must not exceed 20,000 psi using the formula:

$$S = \frac{Pd}{2t}; \text{ where}$$

S = Wall stress in pounds per square inch.

P = Prescribed pressure for the tank of at least 3 times charged pressure at 70°F or 100 whichever is greater, in pounds per square inch.

d = Inside diameter, in inches

t = Minimum wall thickness in inches.

- d. Burst pressure must be at least 6 times the charge pressure.
- e. Charged pressure must not exceed 42 psig at 70°F.
- f. Safety relief devices are not required.
- g. Each tank must be overpacked in a strong outside packaging in accordance with 49 CFR 173.301(k).

8. SPECIAL PROVISIONS.

a. Shippers may use the packaging covered by this exemption pursuant to 49 CFR 173.22a.

b. A copy of this exemption must be carried aboard each vessel and motor vehicle used to transport packages covered by this exemption.

c. Packages are exempt from marking and labeling requirements except that the name of the contents must be marked on the outside package. In addition, the marking requirements of Part 107, Appendix B must be met.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents or damage to the package must be reported to the Office of Hazardous Materials Transportation as soon as practicable.

10. EXPIRATION DATE. March 31, 1990.

Issued at Washington, D.C.:


Alan I. Roberts
Director
Office of Hazardous Materials Transportation

MAY 4 1988

DATE

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FHWA, FRA, USCG